

The Pizarro.

ation ; and if they then fraudulently suppress any material facts, they ought not to be indulged with an opportunity to disclose what they please, or to give color to their former statements, after counsel has been taken, and they know the pressure of the cause. Public policy and justice equally point out the necessity of an inflexible adherence to this rule.

It is upon the ship's papers, and the examinations thus taken in preparatory, that the cause ought, in the first instance, to be heard in the district court ; and upon such hearing, it is to judge whether the cause be of such doubt as to require further proof ; and if so, whether the claimant has entitled himself to the benefit of introducing it. If the court should deny such order, when it ought to be granted, or allow it, when it ought to be denied, and the objection be taken by the party, and appear upon the record, the appellate court can administer the proper relief. *If, however, evidence in the nature of further proof be introduced, and no formal [*241 order or objection appear on the record, it must be presumed to have been done by consent of parties, and the irregularity is completely waived. In the present case, no exception was taken to the proceedings or evidence in the district court ; and we should not, therefore, incline to reject the further proof, even if we were of opinion, that it ought not, in strictness, to have been admitted.

The objection, which is urged against the admission of the further proof would, under other circumstances, deserve great consideration. Concealment, or even spoliation of papers, is not of itself a sufficient ground for condemnation in a prize court. It is, undoubtedly, a very awakening circumstance, calculated to excite the vigilance, and justify the suspicions of the court. But it is a circumstance open to explanation, for it may have arisen from accident, necessity or superior force ; and if the party, in the first instance, fairly and frankly explains it to the satisfaction of the court, it deprives him of no right to which he is otherwise entitled. If, on the other hand, the spoliation be unexplained, or the explanation appear weak and futile ; if the cause labor under heavy suspicions, or there be a vehement presumption of bad faith or gross prevarication, it is made the ground of a denial of further proof, and condemnation ensues, from defects in the evidence, which the party is not permitted to supply.

In the present case, there can be no doubt, that there has been a gross prevarication and suppression *of testimony by the master and supercargo. Nothing can be more loose and unsatisfactory than their first [*242 examinations ; and the new and circumstantial details given upon their second examinations are inconsistent with the notion of perfect good faith, in the first instance. The excuse, too, for throwing the packet of papers overboard is certainly not easily to be credited ; for the ship's documents which still remained on board would, in the view of a Carthaginian privateer, have completely established a Spanish character. It is not, indeed, very easy to assign an adequate motive for the destruction of the papers. If the ship was Spanish, it was, as to American cruisers, immaterial to whom the cargo belonged ; for by our treaty with Spain (treaty of 1795, art. 15), declaring that free ships shall make free goods, the property of an enemy on board of such a ship is just as much protected from capture as if it were neutral. The utmost, therefore, that this extraordinary conduct can justify on the part of the court is, to institute a more rigid scrutiny into the char-